



CHAPTER xxx.

An Act for conferring further powers on the Wrexham Gas Light Company. A.D. 1905.
[30th June 1905.]

WHEREAS by the Wrexham Gas Act 1870 (hereinafter referred to as “the Act of 1870”) the Wrexham Gas Light Company (hereinafter referred to as “the Company”) were incorporated and were empowered to supply with gas the town of Wrexham and its neighbourhood:

And whereas by the Wrexham Gas Order 1873 and by the Wrexham Gas Act 1886 (hereinafter referred to as “the Act of 1886”) further powers were conferred on the Company:

And whereas the following is a statement of the capital in stock and shares and of the borrowing powers of the Company:—

CAPITAL STOCK AND SHARES.

Act of Parliament authorising Stock and Shares.	Description of Stock and Shares.	Maximum Dividend per cent.	Total paid up.			Premiums received.			Remaining to be issued.			Total authorised.
			£	s.	d.	£	s.	d.	£	s.	d.	£
Act of 1870.	Original consolidated stock. Ordinary shares.	10 7	12,000	0	0	—	—	—	12,000			12,000
			38,000	0	0	—	—	38,000			38,000	
Act of 1886.	Ordinary shares.	7	10,600	0	0	4,390	8	6	9	11	6	15,000
			60,600	0	0	4,390	8	6	9	11	6	65,000

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BORROWING.

Act of Parliament authorising Loan.	Description of Loan.	Rate of Interest.	Total borrowed.	Total authorised.
Act of 1870	Mortgage or debenture stock.	Not exceeding five per cent.	£ 12,500 s. 0 d. 0	£ 12,500 s. 0 d. 0
Act of 1886	Mortgage or debenture stock.		3,750 0 0	3,750 0 0
			16,250 0 0	16,250 0 0

And whereas it is expedient that the existing consolidated stock and the share capital of the Company should be converted and consolidated as provided by this Act and that the Company be authorised to raise additional capital for the purposes of their undertaking and that the other powers hereinafter mentioned be conferred on the Company:

And whereas it is expedient that the limits within which the Company are by the Act of 1870 authorised to supply gas should be extended so as to include that part of the parish of Gresford which is not already within the Company's limits and also the parishes or townships of Abenbury Fawr Bieston Borrass Hovah Borrass Riffre Erlas Gourton and Marchwiell all in the rural district of Wrexham and the county of Denbigh:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Wrexham Gas Act 1905 and the Act of 1870 the Wrexham Gas Order 1873 and the Act of 1886 and this Act may be cited together as the Wrexham Gas Acts 1870 to 1905.

Incorporation of general Acts.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building";

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

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The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the Company;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) Part III. (relating to debenture stock) and Part IV. (relating to change of name) of the Companies Clauses Act 1863 as amended by subsequent Acts; and

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement).

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction:

Interpretation.

And in this Act—

“The Company” means the Wrexham Gas Light Company;

“The Act of 1870” means the Wrexham Gas Act 1870;

“The Act of 1886” means the Wrexham Gas Act 1886.

4. From and after the passing of this Act the limits of supply of the Company shall include in addition to their existing limits the parishes or townships of Abenbury Fawr Bieston Borrass

Extension of limits of supply.

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Hovah Borrass Riffre Erlas Gourton and Marchwiel all in the rural district of Wrexham and the county of Denbigh and such part of the parish of Gresford in the same rural district and county as is not included in the Company's existing limits and the Company shall have and may exercise within the limits of supply as extended by this Act all and the like powers privileges and authorities for and in relation to the supply of gas and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have and are subject to within the limits of supply of the Company as defined by section 4 of the Act of 1870.

Conversion
of existing
stock and
ordinary
shares of
Company.

5.—(1) As from the first day of January one thousand nine hundred and six all the existing consolidated stock and ordinary shares of the Company shall be converted and consolidated into one class of stock to be called ordinary stock according to the following scales (that is to say):—

For every one hundred pounds of existing consolidated stock two hundred pounds ordinary stock and so in proportion for any greater or less sum than one hundred pounds of existing consolidated stock :

For every ordinary share fourteen pounds of ordinary stock.

(2) As on the first day of January one thousand nine hundred and six there shall be by virtue of this Act created such nominal amounts of five per centum ordinary stock as shall be necessary for the purpose of carrying into effect such conversions and the amounts of ordinary stock to which the holders of existing consolidated stock and of shares respectively become by virtue of this Act entitled in substitution for such existing stock and shares shall be vested in such holders as from the first day of January one thousand nine hundred and six and shall be forthwith registered in their respective names in the books of the Company Provided that no person shall become entitled to any fractional part of ten pounds of the said five per centum ordinary stock but in every case in which any person would but for this proviso have become entitled to a fractional part of ten pounds of such stock the Company may at their option issue to such person such a further amount of stock as will make up an even ten pounds receiving from him the market value thereof in cash or pay to such person in cash the market value of such fractional part in lieu of issuing to him such fractional part of ten pounds of stock.

Ordinary
stock to be
held on same

6. All ordinary stock issued to holders of existing consolidated stock or ordinary shares shall be held in the same rights

on the same trusts and subject to the same powers provisions charges and liabilities as those in upon or to which the existing stock or shares for which the ordinary stock is substituted were held or were subject to immediately before the first day of January one thousand nine hundred and six and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such existing stock or shares and trustees executors or administrators or other incapacitated parties may accept ordinary stock in substitution for the existing consolidated stock and ordinary shares held by them and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as they might have retained disposed of or otherwise dealt with such existing stock or shares.

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 trusts &c. as
 stock or
 shares for
 which it is
 substituted.

7. The Company shall call in the certificates of the existing consolidated stock and ordinary shares and shall issue in exchange free of charge for those certificates to the respective holders thereof certificates of ordinary stock of the respective amounts to which those holders are by this Act respectively entitled but no holder shall be entitled to a certificate of the ordinary stock so substituted for the existing consolidated stock or ordinary shares held by him until he shall have delivered up to the Company to be cancelled the certificate for which such certificate of stock is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity as the Company may require. Provided always that until the issue of the certificate of such ordinary stock the certificate for which such new certificate is to be substituted shall according to the amounts of ordinary stock to be substituted by virtue of this Act for the existing consolidated stock and ordinary shares which they respectively represent have and confer the same rights and advantages as if they were certificates for those respective amounts of ordinary stock which are to be so substituted for such existing consolidated stock and ordinary shares but if any holder of any existing consolidated stock and ordinary shares of the Company neglect or omit to send or deliver to the Company his existing certificate for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book the Company may suspend the payment of any dividend declared or made payable upon or in respect of the ordinary stock so held by him until such existing certificate is sent or delivered to

Certificates
 to be called
 in and others
 issued.

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Transfers of stock and shares although by present name to be valid.

8. All transfers or other dispositions of existing consolidated stock and ordinary shares as existing up to the conversion thereof into ordinary stock by virtue of this Act shall after such conversion and notwithstanding this Act be valid and have due effect given to them respectively as transfers for the respective amounts of ordinary stock which the existing consolidated stock and ordinary shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the stock or shares transferred or disposed of had before such conversion and the bequest of or any covenant or provision of any deed or agreement relating to any specific or nominal amount of any existing consolidated stock or ordinary shares shall be held to apply to ordinary stock of the amount into which such consolidated stock and shares shall have been converted.

Stock to be transferable in multiples of 10l.

9.—(1) All ordinary stock of the Company shall be issued and be transferable only in amounts of ten pounds or multiples of ten pounds.

(2) Notice of the effect of this enactment shall be stated in all certificates of such stock.

Rights of holders of stock.

10. Holders of ordinary stock shall be entitled to participate in the dividends and profits of the Company according to the amount of their interests in that stock and subject to the provisions of this Act such interests shall in proportion to the amount thereof confer on the respective holders of such stock the same privileges and advantages as would have been conferred by the existing consolidated stock or ordinary shares for which the stock is substituted.

Application of provisions of Companies Clauses Consolidation Act 1845 to ordinary stock.

11. Subject to the provisions of this Act sections 7 10 to 13 and 62 to 64 of the Companies Clauses Consolidation Act 1845 shall extend and apply to the ordinary stock of the Company and sections 18 to 20 of that Act shall be deemed and construed to include and apply to ordinary stock and dividends thereon as if such stock and dividends respectively had been expressly named in the said sections.

12. The Company may raise additional capital not exceeding A.D. 1905.
 in the whole forty thousand pounds by the creation and issue Additional
 of ordinary stock but no such stock shall vest in the person capital.
 accepting the same unless and until the full price of such stock
 including any premium obtained upon the sale thereof shall have
 been paid in respect thereof. Provided that it shall not be lawful
 for the Company to create and issue under the powers of this Act
 any greater nominal amount of capital than shall be sufficient to
 produce including any premium which may be obtained on the
 sale thereof the sum of forty thousand pounds.

13. Notwithstanding anything in this Act contained the New stock to
 Company shall when any stock created under the powers of the be offered by
 section of this Act the marginal note whereof is "Additional auction or
 capital" is to be issued and before offering the same to the tender.
 holder of any other stock in the Company and whether the
 ordinary stock of the Company is at a premium or not offer the
 same for sale by public auction or by tender in such manner at
 such times and subject to such conditions of sale as the Company
 shall from time to time determine. Provided that at any such
 sale no single lot shall comprise more than one hundred pounds
 nominal value of stock and that the reserved price put upon such
 stock shall not be less than the nominal amount thereof and
 notice of the amount of such reserved price shall be sent by the
 Company in a sealed letter to the Board of Trade not less than
 twenty-four hours before the day of auction or the last day for
 the reception of tenders as the case may be and such letter may
 be opened after such day of auction or last day for the reception
 of tenders and not sooner and provided that no priority of tender
 shall be allowed to any holder of stock in the Company except
 that if any bidding or offer by tender of any holder or holders of
 stock be the same in amount as any bid or offer made by any
 other person the bidding or offer of such holder or holders of
 stock shall be accepted in preference and preference may in like
 manner be given to any employee of the Company or any con-
 sumer of gas supplied by the Company whose bid or offer is the
 same in amount as any bid or offer made by any other person
 not being a holder of stock in the Company.

14. It shall be one of the conditions of any sale of stock Purchase
 under this Act that the full price thereof including any premium money to be
 given by any purchaser at such sale shall be paid to the Company paid within
 within three months after such sale. threemonths.

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Notice to be
given as to
sale of stock.

15. The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of the borough of Wrexham to the clerks to the district councils for every district wholly or partly included in the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply.

Disposal of
stock not sold
by auction or
tender.

16. When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others. Provided always that any stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act except that the reserved price put upon such stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any stock not then sold may be disposed of by the directors or offered to the holders of ordinary stock or to such employees or consumers at not less than the last-mentioned reserved price and so from time to time until the whole of such stock is sold.

Application
of premium
arising on
issue of
stock.

17. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend. Provided that all such sums shall be deemed to be part of the nominal and paid-up capital of the Company for the purpose of determining the powers of the Company to raise money by borrowing and the amounts they may place to the reserve renewal or insurance fund respectively.

18. Subject as hereinafter provided the additional capital raised by the Company under this Act shall be part of the general capital of the Company and save as otherwise provided in respect of such capital by the provisions of this Act the holders of stock in such additional capital shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their stock from time to time paid up and be subject to the like provisions and liabilities as the holders of stock issued under this Act to the holders of the shares in the present capital of the Company.

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Privileges
&c. of holders
of additional
capital.

19. The Company may at any time and from time to time after the thirty-first day of December one thousand nine hundred and five borrow on mortgage of the undertaking any sum or sums not exceeding (inclusive of the sum of sixteen thousand two hundred and fifty pounds already borrowed in pursuance of the Acts of 1870 and 1886) one third of the nominal amount of the ordinary stock into which the existing consolidated stock and the share capital of the Company is by this Act consolidated.

Power to
borrow in
respect of
consolidated
capital.

20. The Company may also subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued but no part thereof shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock (and premium if any) has been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to
borrow in
respect of
additional
capital.

21. Section 21 of the Act of 1886 (As to conversion of borrowed money into capital) is hereby repealed and notwithstanding anything in the Acts of 1870 1886 and this Act the Company shall not convert borrowed money into capital.

Borrowed
money not to
be converted
into capital.

22. The Company may in respect of the powers of raising money on mortgage or bond conferred upon them by this Act create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding

Debenture
stock.

A.D. 1935. — anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act.

Priority of mortgages and debenture stock over other debts.

23. All money raised by the Company on mortgage or debenture stock under the provisions of any former Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock.

Existing mortgages to have priority.

24. All mortgages and bonds granted by the Company in pursuance of the Acts of 1870 and 1886 and subsisting at the passing of this Act shall during the continuance of such mortgages and bonds and subject to the provisions of the Acts of 1870 and 1886 have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Arrears may be enforced by appointment of a receiver.

25. Section 24 of the Act of 1886 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

26. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

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Application
of moneys.

27. If any money is payable to a shareholder or stockholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in
case of per-
sons not sui
juris.

28. As from the first day of January one thousand nine hundred and six section 37 (Quorum of general meetings) of the Act of 1870 shall be read and have effect as if the word "stockholders" had been inserted therein in lieu of the word "shareholders" and as if the amounts to be held by the stockholders in the capital of the Company had been two thousand pounds instead of one thousand pounds.

Quorum of
general
meeting.

29.—(1) As from the first day of January one thousand nine hundred and six section 38 (Scale of voting) of the Act of 1870 shall be and the same is hereby repealed.

Scale of
voting.

(2) As from that date at any general meeting of the Company every holder of ordinary stock shall be entitled to one vote in respect of every ten pounds of ordinary stock held by him.

30.—(1) As from the first day of January one thousand nine hundred and six section 39 (Number and qualification of directors) of the Act of 1870 so far as it relates to the qualification of directors shall be and the same is hereby repealed.

Qualification
of directors.

(2) As from that date the qualification of a director of the Company shall be the possession in his own right of not less than two hundred pounds of ordinary stock.

31. The directors of the Company may in each half year if they think fit appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per centum on the paid-up capital for the time being of the Company to be called "the renewal fund" to provide for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate any portion of such fund to such purposes.

Renewals.

Such fund shall be invested in any securities in which trustees are for the time being authorised to invest money and

A.D. 1905. the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one tenth of the paid-up capital for the time being of the Company:

Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that if such fund be at any time reduced below such sum it may thereafter be made up to that sum and so from time to time as often as such reduction shall happen.

Limitation of profits.

32. Notwithstanding anything contained in the Act of 1870 as from the first day of January one thousand nine hundred and six the profits of the Company to be divided amongst the holders of the ordinary capital of the Company in any year shall not (except as by this Act provided) exceed the rate of five pounds per centum per annum.

Declaration by directors of half-yearly dividends.

33. The directors may declare and pay a half-yearly dividend payable out of the profits of the Company for any half year ending on the thirtieth day of June without the sanction or direction of a general meeting of stockholders but no such half-yearly dividend shall exceed one half of the authorised rate of dividend.

Closing of transfer books previous to declaring dividend.

34. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published in the borough of Wrexham and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Power for directors to determine remuneration of secretary.

35. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1899 they may from time to time determine the remuneration of the secretary of the Company.

Power to purchase lands by agreement.

36. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands now belonging to or authorised to be

acquired by them any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands which the Company are authorised by the Act of 1870 and the Act of 1886 to use for such purposes.

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37. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices show-rooms and other buildings for the purposes of their undertaking and they may also erect maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company.

Dwelling-houses for persons in Company's employ.

38. The Company may sell and dispose of or may let on lease for such period as they think fit any lands for the time being belonging to them which are not required for the purposes of their undertaking and any such disposal or lease may be for such consideration and subject to such reservations stipulations and conditions as the Company think fit And notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 of the Lands Clauses Consolidation Act 1845 shall not apply to any lands sold or disposed of by the Company under the powers of this section.

Power to sell and lease lands.

39. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay down take up alter relay repair or renew in across or along or out of such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay pipes in streets or roads not dedicated to public use.

40. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any

Power to lay down and utilise pipes for ancillary purposes.

A.D. 1905. — manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to require use of anti-fluctuators for gas engines.

41. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator of approved make or pattern and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Power to supply gas fittings and fittings not to be subject to distress.

42.—(1) The Company may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes fittings and other apparatus appliances and things (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

43. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

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As to construction and placing of pipes &c. between mains and meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specifications shall be published twice in some newspaper circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specifications or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the

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court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to
take licences
for use of
patents.

44. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of using working exercising or vending any invention in relation to the production utilisation and distribution of gas the production of coke tar pitch asphaltum ammoniacal oil and the products from coal and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto but not so as to acquire any exclusive right to the working use exercising or putting in practice of any such invention.

Discounts.

45. The Company may if they think fit allow discounts or rebates to consumers of gas in consideration of prompt payment of gas rents not exceeding in any case ten per centum and in addition thereto or irrespective thereof they may if they think fit allow discounts or rebates to large consumers not exceeding in any case fifteen per centum Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Gas con-
sumers to
give notice
to Company
before re-
moving.

46. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

Notice of
discontinu-
ance.

47. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

48. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

A.D. 1905.

Power to refuse to supply persons in debt for other premises.

49. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

Period of error in defective meters.

50. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the Acts of 1870 and 1886 and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

No penalty in case of unavoidable cause.

51.—(1) The Company may contract with any local authority company or person beyond the limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Company may enter into contracts for supply of gas.

(2) The Company may enter into any contract with any person for a supply of gas to any premises within the limits of supply and such supply may be given for such purposes and subject to such terms and conditions as to price and otherwise as may be agreed upon between the Company and the person taking such supply:

A.D. 1905.

Provided that the Company shall not under the powers of this subsection give any preferential price as between any consumers who shall take a supply from the Company under similar conditions and circumstances.

(3) The Company shall not supply gas under any such contract as aforesaid if and so long as such supply would interfere with the supply of gas to private consumers.

For protec-
tion of Great
Western
Railway
Company.

52. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall apply :—

(A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing or in case of difference may be determined by arbitration in manner hereinafter provided Provided always that if such principal engineer shall not approve or disapprove any plans or proposals so submitted to him within twenty-eight days after the same are delivered or shall refuse or neglect to superintend the work the Company may proceed without the approval of the plans as aforesaid or without the superintendence of the said engineer :

(B) All such works shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over

the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company but so nevertheless that any mains or pipes so laid by the Great Western Company shall be laid under the superintendence and to the reasonable satisfaction of the Company's engineer:

- (c) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon:
- (D) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the Company shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided:
- (E) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Western Company may on giving to the Company fourteen days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge then on giving as long a notice as possible divert support

A.D. 1905.
—

or carry the said works of the Company across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works provided that such works shall be done subject to the reasonable satisfaction of the engineer of the Company and without unduly interfering with the supply of gas by the Company :

- (F) Any dispute or difference which may arise between the Great Western Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Company or either of them.

Recovery of demands.

53. Proceedings for the recovery of any demand made under the authority of the Act of 1870 and this Act whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court Provided that the demand does not exceed the amount recoverable in that court in a personal action.

Authentica-
tion and
service of
notices by
Company.

54. Any notice to be served by the Company under the Acts of 1870 and 1886 and this Act on a person supplied with gas shall be sufficiently authenticated by the name of the secretary of the Company or if it be a notice to pay any charge in respect of a supply of gas by the name of the secretary or collector of the Company being affixed thereto in writing.

Amendment
of section 54
of Act of
1870.

55. Section 54 (Price of gas supplied to public lamps) of the Act of 1870 shall be read and have effect as if the words "for lighting purposes" were inserted after the word "consumer" where that word occurs in that section and as if the word "extended" were omitted before the word "limits" where that word occurs in that section :

Provided that notwithstanding anything in this section contained the price to be charged by the Company for gas supplied to public lamps within the borough of Wrexham shall not

at any time exceed two shillings and threepence per thousand cubic feet unless in the opinion of an arbitrator to be agreed on by the Company and the mayor aldermen and burgesses of the borough of Wrexham or failing agreement to be appointed by the Board of Trade it is reasonable that such price should be increased in consequence of accidents strikes large increase in the cost of coal or other exceptional circumstances and such arbitrator shall in his award fix the increased price and the period during which it is to be charged. A.D. 1905.

56. From and after the passing of this Act the name of the Company shall be "The Wrexham Gas Company." Change of name.

57. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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